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AS AMENDED

By: Standridge

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1 provided to a property owner by the acquiring agency or other entity
2 at the **presentation of the first offer.**

3 B. The Landowner's Bill of Rights shall notify each property
4 owner of the right to:

5 1. Notice of the proposed acquisition of the owner's property;

6 2. A bona fide good-faith effort to negotiate by the entity
7 proposing to acquire the property. A bona fide good-faith effort to
8 negotiate shall include the acquiring entity providing the property
9 owner with any appraisal or damage assessment relied upon by such
10 entity;

11 3. An assessment of damages to the owner that will result from
12 the taking of the property;

13 4. A hearing under this title, including a hearing on the
14 assessment of damages;

15 5. An appeal of a judgment in a condemnation proceeding,
16 including an appeal of an assessment of damages; and

17 6. First refusal or right of first offer if the acquired land
18 is ever sold by the state or any state agency or any person who
19 acquired the land through the use of eminent domain authority. If
20 the landowner chooses to exercise this right, the price would be the
21 lower of either the current market value or the price received by
22 the landowner under the eminent domain sale. This right shall be
23 available to the landowner in the original eminent domain sale and
24 to the first generation of heirs.

1 ~~However, acquired land may be transferred to another state~~
2 ~~agency without prompting the first refusal or right of first refusal~~
3 ~~as provided in this paragraph.~~

4 C. The statement shall include:

5 1. The title "Landowner's Bill of Rights"; and

6 2. A description of:

7 a. the condemnation procedures provided by this title,

8 b. the condemning entity's obligations to the property
9 owner,

10 c. the property owner's options during a condemnation,
11 including the property owner's right to object to and
12 appeal an amount of damages awarded, and

13 d. the property owner's right of first refusal or right
14 of first offer if the acquired land is ever sold by
15 the state or any state agency or any person who
16 acquired the land through the use of eminent domain
17 authority.

18 D. The Attorney General shall review and update the Landowner's
19 Bill of Rights no less than once every two (2) years to ensure
20 accuracy and clarity.

21 SECTION 2. This act shall become effective November 1, 2026.

22 COMMITTEE REPORT BY: COMMITTEE ON JUDICIARY
23 March 3, 2026 - DO PASS AS AMENDED
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